

Nazrul Islam v. U.P. Power Corporation

Allahabad High Court · Division Bench · 9 November 2009 · Writ-C No. 59691 of 2009 · **Writ dismissed; relegated to Para 6.5 bill-objection remedy.**

HEADNOTE

A writ challenging the correctness of a consumption bill was dismissed because Para 6.5 of the U.P. Electricity Supply Code, 2005 already gives the consumer a right to object to the bill.

FACTUAL SUMMARY

Nazrul Islam filed Writ-C No. 59691 of 2009 in the Allahabad High Court against U.P. Power Corporation and others, challenging the correctness of a consumption bill raised by respondent no. 2. Counsel for the petitioner was heard. Shri Pankaj Kumar Shukla appeared for the respondents. The order records no particulars of the connection, meter, or bill amount.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

bill-objection alternative remedy

HOLDING

A consumer who challenges the correctness of a consumption bill has a right to raise objections under Para 6.5 of the U.P. Electricity Supply Code, 2005; a writ petition on that score is dismissed on the ground of alternative remedy. ¶ 1

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5 A writ challenging the correctness of a consumption bill was dismissed because Para 6.5 of the U.P. Electricity Supply Code, 2005 already gives the consumer a right to object to the bill. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE CONSUMPTION BILL

Writ dismissed without examining the bill on merits. ¶ 1